

Mohit Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 April 2011 · Writ-C No. 20752 of 2011 · **Writ disposed; 6.5 representation to be decided; reconnection if no arrears.**

HEADNOTE

On a consumer writ against U.P. Power Corporation Ltd., the Division Bench did not decide arrears or reconnection on merits. Under clause 6.5 of the U.P. Electricity Supply Code, 2005, the licensee is to decide the petitioner's representation if filed within one week of a certified copy, after hearing and by a reasoned order within two further weeks. If the authority finds the case genuine and that all amounts have been paid with no arrear, reconnection may be effected as early as possible without awaiting that consideration.

FACTUAL SUMMARY

Mohit Singh filed a writ petition in the Allahabad High Court against U.P. Power Corporation Ltd. and another arising from a consumer electricity dispute. He wanted the respondents to consider his representation and to restore supply. The record as placed before the Court did not establish, and the Bench did not find, whether any arrear was outstanding or whether the petitioner had already paid all amounts due. Both sides were represented. The petition was taken up and disposed of the same day, 8 April 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

licensee decision on consumer representation; reconnection if no arrears

HOLDING

Under clause 6.5 of the U.P. Electricity Supply Code, 2005, the licensee shall decide the consumer's representation, if filed within one week of obtaining a certified copy of the order, within two further weeks after fullest opportunity of hearing and by a reasoned order; if the authority finds the case genuine and that all amounts have been paid with no arrear, it may take steps for reconnection as early as possible irrespective of that consideration. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

On a consumer writ against U.P. Power Corporation Ltd., the Division Bench did not decide arrears or reconnection on merits. Under clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ARREAR WAS OUTSTANDING AND WHETHER THE PETITIONER WAS ENTITLED TO RECONNECTION ON THE MERITS

Left to the 6.5 authority; reconnection permitted only if that authority finds the case genuine and all amounts paid with no arrear. ¶ 1